

French Financial Transaction Tax – Issuer CSD

Description Document

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REVIEW



EURONEXT SECURITIES

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1. Executive summary

The French FTT was introduced in the French tax regulation pursuant to Article 5 of the French Amended Finance Bill of 14 March 2012.

The French FTT is applicable to the acquisitions (which may also result from corporate actions) of shares traded on a regulated market, French or foreign, issued by French entities (headquartered in France) with a market capitalisation of more than €1 billion on 1 December of the previous year.

a) Euronext Securities Milan as Investor CSD

Euronext Securities Milan provides an FTT service as an Investor CSD for French equities. Information about this service is currently available via [the following link](#) (under T2S Markets > France > Financial Transaction Tax). In addition, in Annex A you will find a visual flow to illustrate the processing of FTT when Euronext Securities Milan is Investor CSD.

b) Euronext Securities Milan as Issuer CSD

Euronext Securities Milan is authorised by the French authorities to act as Issuer CSD for French equities through the mechanism provided in CSDR. However with regard to French FTT as an Issuer CSD established outside of France, it is currently bound by the following extract in the French FTT legislation:

"Central depositary is established outside France The taxpayer must send return No. 3374-SD along with payment to the Large Corporations Division before the 25th of the month following settlement of the securities. ~~This rule does not apply to the acquisition of a depositary receipt during its creation process. In this situation, the tax is reported and, where applicable, paid under the conditions stipulated for a central depositary established in France if the receipt evidences the transfer of the share it represents. In situations other than creation or cancellation (see §148 et seq.), the acquisition of a depositary receipt is reported and, where applicable, payment is made to the Large Corporations Division before the 25th of the month following the acquisitions of taxable securities (BOI TCA FIN 10 40 20150304, §120). The taxpayer may also opt to report and, where applicable, make payment to the Euroclear France member of its choice."~~

Commented [SC1]: This section has been removed as it refers to depositary receipts, which are not in scope for this document.

Euronext Securities Milan does not exclude that other options such as support with declarations and payments may be available in the future.

2. In Practice

As a practical consequence of the current wording in the French FTT law, taxpayers holding French shares subject to FTT for which Euronext Securities Milan is the Issuer CSD must file FTT declarations and payments directly to the French tax authorities, as detailed below.

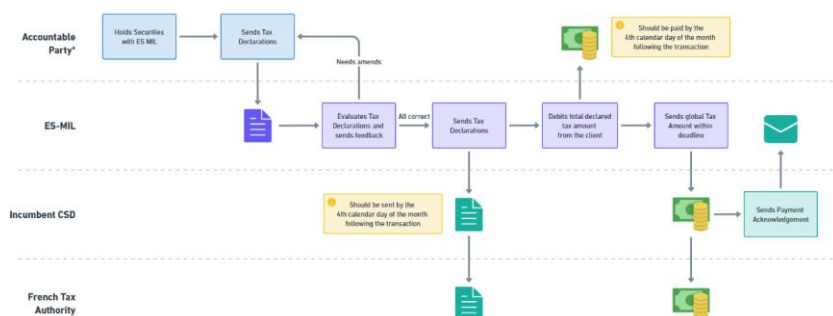
CSD participants are required to send their FTT declaration (No. 3374-SD) and related payments directly to the French Authorities (*payment is made to the Large Corporations Division before the 25th of the month following the acquisitions of taxable securities (BOI-TCA-FIN-10-40-20150304, §120).*

As a reminder:

The French FTT is applicable on the acquisitions of shares traded on a regulated market (French or foreign) issued by French entities (Headquarters are in France) with a market capitalisation of more than €1 billion on 1 December of the previous year (acquisitions may also result from corporate actions).

Only acquisitions are taxed, while sales are not in scope. The list of French companies with a market capitalisation value on 1 December of each year greater than EUR 1 billion will be published before 31 December of the same year of the same year on the French Tax Authority portal (link to the [FTA's website](#)).

3. Annex A: FTT service of Euronext Securities Milan as Investor CSD



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